

25NWLC41707 25NWLC41707

County: los-angeles

Division: Civil Law and Motion

Department: Z

Hearing date: 2026-09-23

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The Court finds Plaintiff has met the initial burden of showing that there is no defense to the causes of action by proving each element of the causes of action entitling Plaintiff to judgment.

On July 8, 2025, Plaintiff WELLS FARGO BANK filed this credit card collections action against Defendant CRYSTAL MAYA. Plaintiff issued a credit card to Defendant, which the Defendant accepted. Defendant used the card to purchase goods, services, and/or for cash advances. Defendant, in exchange for use for the card, agreed to repay the principal along with interest and other charges. (Complaint at p. 4.) Plaintiff's Complaint alleges two causes of action: Breach of Written Contract and Breach of Implied Contract.

The Court has read and reviewed Plaintiff's Motion for Summary Judgment, Separate Statement of Undisputed Facts, Declaration of Edgar B. Lopez and attached exhibits, Declaration of Plaintiff's Qualified Witness and attached exhibits. The Court notes that the exhibits attached to the Declaration of Edgar B. Lopez are largely illegible due to formatting issues. Therefore, the Court's ruling is based on the Declaration of Plaintiff's Qualified Witness, Kimberly Bauer and attached exhibits. The Court finds that Plaintiff has met its initial burden of establishing all elements in support of the breach of contract claims. There is no triable issue of material fact.

The burden having shifted to Defendant, the Court finds Defendant has failed to set forth specific facts showing that a triable issue of material fact exists as to the causes of action or a defense thereto as required by CCP 437c(p)(1).

The court finds that Plaintiff is entitled to judgment as a matter of law and GRANTS the Motion for Summary Judgment. Judgment to enter in favor of Plaintiff for the principal sum of \$12,506.40, plus court costs of \$960.00, for a total judgment of \$13,466.40.